

## Ganesh Vishwakarma v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 26 May 2022 · WRIT - C No. 10794 of 2022 · WRIT - C No. 10794 of 2022 · **Writ disposed; relegated to Para 6.8 objection with eight-week stay.**

### HEADNOTE

A consumer's writ against a theft-assessment demand was disposed without opinion on merits after the distribution licensee stated that an objection would be decided in a time-bound manner. Liberty was granted to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005, to be decided after hearing, with a short stay of coercive recovery.

### FACTUAL SUMMARY

The petitioner challenged a 20 June 2018 demand notice of the Executive Engineer, Electricity Distribution Section, Mauranipur, Jhansi, for Rs. 2,49,674 as alleged electricity-theft dues, and the consequent recovery. He also invoked a 13 July 2019 order of the Special Judge (Electricity Act), Jhansi in Special Trial No. 97 of 2019. Counsel for the distribution corporation stated that an objection to the demand would be decided in a time-bound manner.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::6.8

assessment-6.8-alternate-remedy

#### HOLDING

Without expressing any opinion on merits, the writ was disposed of with liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before respondent no.4 within four weeks; if so submitted, the objection shall be decided in accordance with law within the next four weeks after reasonable opportunity of hearing. Coercive action on the impugned demand is stayed for eight weeks or till disposal of the objection, whichever is earlier. ¶ 4-5

### PRINCIPLE TAGS

**alternative-remedy-statutory-appeal-6.8** Theft-assessment demand writ disposed without merits adjudication, relegating the consumer to a Para 6.8 objection before the licensee. ¶ 3-4

**pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay** Directed time-bound disposal of the Para 6.8 objection after hearing, with stay of coercive recovery for eight weeks or till disposal, whichever earlier. ¶ 4-5

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — MERITS OF THE 20.06.2018 THEFT-ASSESSMENT DEMAND OF RS. 2,49,674 AND THE CONSEQUENT RECOVERY

Court expressly declined to opine on merits and relegated the petitioner to a Para 6.8 objection. ¶ 4

#### NOT DECIDED — EFFECT OF THE SPECIAL JUDGE (ELECTRICITY ACT) ORDER DATED 13.07.2019 IN SPECIAL TRIAL NO. 97/2019

Mandamus relief founded on that criminal-court order was not adjudicated. ¶ 2